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DEMURRER

The Court tenders the following

tentative decision in the matter Luke Walker v. Vince Gilligan, et al., Los Angeles County Superior Court case number 25STCV29647, set for hearing on June 25, 2026. The present case arises from alleged fraud and unfair competition related to the creation of the television show Breaking Bad. Anonymous Content, LLC (AC) demurs to Luke Walker's (Plaintiff) second amended complaint (SAC) and all causes of action alleged against it therein individually. Separately, Vince Gilligan, Sony Pictures Television, Inc. (SPT) and AMC Networks Inc. (AMC) demur to Plaintiff's SAC and all causes of action alleged against them. The Court sustains both demurrers and grants Plaintiff leave to amend.

A. Legal Standard

A demurrer is sustained where "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., 430.10, subd. (e).) "A demurrer tests the legal sufficiency of the factual allegations in a complaint." (Yalung v. State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal sufficiency, a court will treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. (Esparza v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well settled that a "demurrer lies only for defects appearing on the face of the complaint[.]" (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Guclimane Co. v. Stewart Tit. Guaranty Co.

(1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (Wilner v. Sunset Life Ins. Co. (2000) 78 Cal.App.4th 952, 958.)

When ruling

on a demurrer, a court may only consider the complaint's allegations or matters which may be judicially noticed. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (Ion Equipment Corporation v. Nelson (1980) 110 Cal.App.3d 868, 881.) A demurrer is properly sustained only when the complaint, liberally construed, fails to state facts sufficient to constitute any cause of action. (Kramer v. Intuit Inc. (2004) 121 Cal.App.4th 574, 578.)

When a

demurrer is sustained the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

AC, Gilligan, SPT, and AMC

(collectively, Defendants) demur to all Plaintiff's causes of action on the grounds that they are barred by their respective statutes of limitations. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff alleges the following causes of action: (1) fraudulent concealment; (2) intentional misrepresentation; (3) fraudulent inducement; (4) negligent misrepresentation; (5) breach of implied-in-fact contract; (6) accounting; (7) constructive trust; (8) declaratory relief; (9) aiding and abetting fraud; (10) interference with prospective economic advantage; and (11) unfair competition. (SAC.) The Court previously sustained Defendants demurrers to the first amended complaint on this ground.

A statute of limitations defense may be raised by general demurrer where “the complaint shows on its face that the statute bars the action.” (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315.) “[T]he defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.” (*Id.* at p. 1316.)

The applicable statute of limitations for Plaintiff’s first through third and ninth causes of action sounding in fraud is 3 years. (Code Civ. Proc., § 338, subd. (d).) The limitations period for negligent misrepresentation is 2 years. (*Ventura County Nat. Bank v. Macker* (1996) 49 Cal.App.4th 1528.) The limitations period for breach of implied-in-fact contract is 2 years as well. (*NBCUniversal Media, LLC v. Superior Court* (2014) 225 Cal.App.4th 1222, 1230–31.) Claims for tortious interference with prospective economic advantage are also barred after 2 years, while claims for unfair competition pursuant to Business and Professions Code section 17200 are barred after 4. (*Augusta v. United Service Automobile Assn.* (1993) 13 Cal.App.4th 4, 10; Bus. & Prof. Code, § 17208.) And the limitations periods for accounting, constructive trust, and declaratory relief claims depend on the nature of the underlying claims. (*Estate of Peebles* (1972) 27 Cal.App.3d 163, 166; compare *Nelson v. Nevel* (1984) 154 Cal.App.3d 132, 138–141 [holding constructive trust based on fraud subject to a 4-year statute of limitations] with *Davies v. Krasna* (1975) 14 Cal.3d 502, 508 [holding constructive trust based on breach of contract subject to 2-year statute of limitations]; *Snyder v. California Ins. Guarantee Assn.* (2014) 229 Cal.App.4th 1196, 1208.) Thus, the limitations periods for Plaintiff’s causes of action are all 4 years or less.

Plaintiff contends that the delayed discovery rule applies. The accrual of some causes of action is postponed “until the plaintiff discovers, or has reason to discover, the cause of action.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.)

It is the Plaintiff’s burden to establish their own late discovery and inability to discover the relevant facts earlier. (*Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th 166, 177–178.) “The discovery rule may be applied to breaches [of contract] which can be, and are, committed in secret and, moreover, where the harm flowing from those breaches will not be reasonably discoverable by plaintiffs until a future time.” (*Gryczman v. 4550 Pico Partners, Ltd.* (2003) 107 Cal.App.4th 1, 4–5 [quoting *April Enterprises, Inc. v. KTTV* (1983) 147 Cal.App.3d 805, 828–833 (*April Enterprises*)].) Thus, assuming application of the delayed discovery rule to all Plaintiff’s causes of action, his claims would be barred if he discovered

Defendants' wrongful conduct before October 10, 2021, four years prior to filing his original complaint.

Here, Plaintiff's allegations underpinning his claims against Defendants revolve around Defendants' alleged theft of Plaintiff's intellectual property, his script for the movie "Speed Queen," in the making of the television show Breaking Bad and movie El Camino. (SAC.) The Court judicially notices the dates that these media projects aired as facts not subject to reasonable dispute. (Evid. Code, § 452, subd. (h).) The last episode of Breaking Bad aired on September 29, 2013, and El Camino was released on October 11, 2019. (RJN, Exs. F–K.) Thus, under Plaintiff's own allegations, the latest he would have had reason to discover the wrongful conduct alleged would have been October 11, 2019. Plaintiff's argument that he lacked sufficient artificial intelligence comparison tools to uncover the similarities between Breaking Bad and his own script is without merit. The discovery rule prevents the accrual of limitations periods until the plaintiff has reason to discover wrongdoing, not until plaintiff finds the best proof of wrongdoing. Here, Plaintiff had reason to discover the alleged wrongful conduct as soon as the works became publicly available.

Plaintiff additionally argues that his fraud related causes of action did not accrue until he discovered an allegedly falsely dated script of Breaking Bad that demonstrated the fraudulent conduct of Defendants. Plaintiff reiterates that he first suspected that Breaking Bad incorporated elements of his own screenplay in 2008. He emphasizes that the fraud he alleges is not the copying of his script but rather the false dating of the script "and the anomalous registration pattern discovered in February 2025, subsequently corroborated by the asserted-but-unproduced FX option, the destroyed circulation records, and the misattribution scheme." However, it is unclear what injury Plaintiff alleges under such a theory. To bring a cause of action for fraud, a plaintiff must plead facts demonstrating that they were damaged by the defendant's tortious conduct. (*Fladeboe v. American Isuzu Motors Inc.* (2007) 150 Cal.App.4th 42, 65–66.) Plaintiff does not articulate how he suffered damage from the alleged chicanery surrounding the Breaking Bad script if his fraud claim is unrelated to the alleged theft of his own ideas. Thus, Plaintiff once again attempts to invoke the discovery rule by pointing to the discovery of certain evidence within the past few years while admitting that he discovered the general facts underlying Defendants' alleged wrongful conduct over a decade previously.

Plaintiff's additional argument that

Defendants are equitably estopped from asserting statute of limitations defenses is also without merit. A "culpable defendant should be estopped from profiting by his own wrong to the extent that it hindered an 'otherwise diligent' plaintiff in discovering his cause of action." (MGA Entertainment, Inc. v. Mattel, Inc. (2019) 41 Cal.App.5th 554, 565.) Here, Plaintiff has not pled facts demonstrating that he was otherwise diligent. Indeed, Plaintiff suspected Defendants' alleged wrongdoing as early as 2008. (SAC.) Yet he failed to file the present suit until 2026. This is not a demonstration of diligence on Plaintiff's part. Thus, all Plaintiff's causes of action are barred by the relevant statutes of limitations because he did not file his complaint within 4 years of discovering, or having reason to discover, Defendants' alleged wrongful conduct. Accordingly, Defendants' demurrers are sustained.

C. Conclusion

The Court sustains

Defendants' demurrers. Plaintiff is granted 20 days leave to amend.